



The Selectboard
TOWN OF WESTHAMPTON
TOWN HALL
1 SOUTH ROAD
WESTHAMPTON, MASSACHUSETTS 01027

MINUTES OF A MEETING

Monday, January 13, 2026, 7:00 PM

CALL TO ORDER

Meeting called to order at 7:05 PM

PRESENT: Bronstein, Wade Clement, Coffey, Milikowsky.

ABSENT: Zimmerman (arrived at 7:09 PM)

PUBLIC COMMENT

The board will receive comments from the public on any item not on the agenda. Public comment period may be limited by the chair.

Mr. Brad Morse , Outlook Farm

Asked for clarification for what uses are permitted at the store and on the farm.

Mr. Morse noted that his “license with the town allows for events”, and that the “taproom includes a specific area.” Mr. Morse stated his interest in expanding use of the interior of the space.

Ms. Milikowsky stated that the board can’t weigh in on potential uses, and can only consider applications upon submission.

Mr. Jon Zimmerman arrived at 7:09 PM.

ANR – 23-C-0025 - Burt Road (Dunn)

Applicant proposes lot line adjustment. No new lots to be created

Present for the applicant: Mr. Chris Dunn.

The board reviewed the proposed division of land. The plan appeared to show all remaining lots would have adequate frontage and access from a public way.

Mr. Coffey questioned whether the narrowness of the proposed driveway complied with town regulations.

After further review, it was MOVED by Clement, SECONDED by Bronstein

To endorse the plan as presented.

VOTED: 5, 0, 0. 7:13 PM.

ANR – 32-0-0007 – Mine Road (Ostrowski-Parks)

Applicant proposes division of lot into two parcels. One new lot to be created. Present for the applicant:

Applicant presented the plan, showing a division of a 10 acre parcel into a 1.75 acre lot, with the remaining area left undivided. After review, the board determined that all lots have adequate frontage on a public way, and with adequate access to each from the public way.

It was MOVED by Coffey, SECONDED by Zimmerman

To endorse the plan as presented.

VOTED: 5, 0, 0. (7:20 PM)

PUBLIC HEARING – Special Permit –Main Road (Bauer)

The Westhampton Planning Board will hold a public hearing on January 13, 2026 at 7 PM at the Town Hall, 1 South Road, at the request of Aaron Bauer to hold a one-day motocross race in the woods on two occasions in a calendar year. Subject property is at 0 Main Road, Assessors Parcel #029-0-0009. Application available online at www.WesthamptonMA.gov or at the Town Hall, 1 South Road, during regular business hours.

Ms. Milikowsky presented rules for conduct of the public hearing, noting that all wishing to speak will be given five minutes, with the presenter given as much time as needed to present their application.

Ms. Milikowsky noted a hard-stop for the public hearing at 9:15 PM, with a continuance anticipated at the end of the meeting. The chair noted that the board will not deliberate at this meeting, but will continue to a date certain.

Ms. Milikowsky reminded members of the options open to the board (approval, approval with conditions, denial). Ms. Milikowsky noted that this review would not consider any information previously presented to the town or any other board or committee of the town.

Ms. Milikowsky reminded members to remain respectful, and that any disruptions will not be tolerated.

Ms. Milikowsky read the public notice.

The public hearing was opened at 7:28 PM.

Presentation

Mr. Aaron Bauer, owner of the property, presented the proposal:

- Mr. Bauer noted that the property is currently in Chapter 61A (Agricultural) and Chapter 61 (Forestry).
- Mr. Bauer noted that a similar event was put on two years previously, with “no problem”.
- The Police Chief verified to Mr. Bauer that there were no issues.
- Mr. Bauer noted that the proposal previously was reviewed by the Selectboard, but not permitted, as that board had no mechanism for granting permission for such type of events.
- Mr. Bauer described the previous event as family-oriented, “fun”, with no issues.
- A letter was entered into the record from Mr. David Unaitis (Mass DEP) finding the event to be well organized with no issues.
- Mr. Bauer noted that the event did not include fireworks, loud music, late-night riding, or any other disruptions.
- Mr. Bauer noted that EMS was on site for the previous event; trash and sanitary services were provided. No campfires were permitted.
- One food vendor was present.
- Mr. Bauer noted that similar events have been held in Worthington, Huntington, Granville and Lanesboro.
- The Race promoter carries insurance, and all participants are required to sign liability waivers.
- Mr. Bauer noted that Mr. Matt Smith, Holyoke Water Works, previously noted that Holyoke Water Works did not have any jurisdiction on the property.
- Mr. Bauer stated that he would not permit or allow anything to contaminate ground or surface water.

Mr Coffey: Were abutters notified? Mr. Finn confirmed.

Ms. Milikowsky: What dates would the event happen? Mr. Bauer – no specific dates yet; the event would happen on a Sunday.

Mr. Coffey: How many racers are expected? Mr. Bauer noted that there would be activity on the site starting Friday evening for setup of the course. Seven races are anticipated, with about 250 motorcyclists in total participating on at least one race.

Ms. Milikowsky: How many persons on site? Mr. Bauer: A rough estimate of 900 persons.

Mr. Coffey: How much parking is required? 200-300 vehicles in total, including campers, trailers, and cars. Parking would be on the 17 acres of hayfield.

Mr. Coffey asked about a water quality report provided by the applicant, and where the samples were collected. Mr. Bauer stated that the sampling was likely done near the water reservoirs.

Ms. Milikowsky: How many persons would be camping on site? Mr. Bauer: I'm not certain. Some of the racers usually camp on Saturday evening.

Ms. Milikowsky: Do most racers camp on site? Mr. Bauer: No. Most arrive early on Sunday morning.

Mr. Clement: Any riding on Saturday? Mr. Bauer: No riding is permitted on Saturday. Participants may walk the track, but no riding is permitted.

Mr. Coffey asked about the water supply protection district overlay. Mr. Finn was directed to provide that map to the board for the next meeting.

Mr. Clement asked about the plan that was provided. Mr. Finn will provide a higher-quality copy of the plan for the next meeting.

Mr. Bauer noted that Town Meeting took no action on a proposal to require a license or permit from the Selectboard for any proposed one-day commercial events.

Mr. Bauer expressed some confusion as to prior actions relative to previous requests.

Ms. Milikowsky noted that the Building Inspector had noted that a special permit was required, and that Section 4.1 of the Zoning Bylaw needed to be reviewed for compliance.

Mr. Bauer thanked the board for their consideration.

Ms. Milikowsky opened the floor for public comment.

Mr. Chris Dunn, 33 Burt Road: Mr. Dunn noted that as a T2 operator for a local water district, and noted that the water test report provided by the applicant was likely taken by as part of a sample plan; the water district is responsible for providing testing services for lead, e-coli, etc. Samples are taken at specific intervals on Holyoke Water Works property, likely at the dam at the reservoir, prior to filtration at the plant. Mr. Chris Dunn noted that on the property managed by his employer, the occasional motorized bike and/or snowmobile do not cause any environmental concern, or present any measurable source of contamination. Mr. Dunn noted that there was likely plenty of room on site, and that there should be no concern about the proximity of the watershed.

Mr. Leslie Fountain: The date for the race will be on June 28, 2026; employees will start arriving on Friday, June 26; a race in Southwick would likely draw many racers away from the site on Saturday; Races will not start before 8 Am. 245 riders, 420 participants in total, of all ages. The dirt bikes are loud, but the race will be out in the woods so well away from residences. There was no observable impact to the woods as a result of the race. No reckless activity that could be determined harmful to the environment was noted.

Mr. Michael Matrishon, 349 Main Road: Present to contest this race. The previous race was a source of noise, significant traffic, and "offensive" signs. The previous race resulted in three days of disruption to their normal lives. This extra disruption impacted his PTSD. For these reasons, we do not want this race to take place on this land.

Ms. Aniko Giordano, 285 Main Road: I know nothing about motocross, and I don't like a lot of noise. This sets a precedent for other large events in town. Is the ground water affected? I don't know.

Wouldn't this set a precedent for future events? What does the town get out of this? How much would we have to do to control the event? How much would it cost the town?

Mr. John Shaw, 10 Stage Road: Not speaking in favor or against this proposal: the special town meeting warrant article was passed over, as Town Meeting felt it needed more study, in order to ensure that private events would not be affected. Mr. Shaw suggested that the proposal was a change of use on the land (from agricultural use to commercial use). Mr. Shaw suggested that wells around the property should be a concern, not the reservoir. Mr. Shaw suggested that more information should be collected before any determination should be made. Mr. Shaw noted that Westhampton had to pursue changes in zoning that allowed different types (commercial, business, etc.) of uses.

Ms. Milikowsky reiterated that the Town Meeting took no action on the proposed warrant article, which allows it to come back at a later date.

Mr. Mike Stacey, 367 Main Road: Spoke in opposition to the event. Mr. Stacey's experience in 2024 was disruptive. Mr. Stacey noted noise levels of 105db-120db were common at other races, and no measurement of noise on the site was not measured. Mr. Stacey noted that noise triggered his PTSD as well; Mr. Stacey described his experience in Vietnam, and the long-lasting impacts of that experience. Mr. Stacey suggested that the motorbike races triggered the nightmares. Mr. Stacey's 10 reasons: Disruptive to the community; water table under the property and 0 main road; 8 hours of noise during the day; area is not zoned for commercial use; creation of a precedent; no study to determine whether the event impacts the environment; Holyoke Water Company suggests that groundwater could be polluted; breakdowns; etc. Mr. Stacey also submitted six letters on behalf of residents.

Ms. Catherine Mis, Attorney; representing Mr. Kahane, Mr. Stacey, et als.

Ms. Mis noted that her clients oppose the use of the land for two reasons: the event is not in the public interest; the Town's bylaw describe a commercial recreational facility, which this event would be; a question is whether the proposal requires a permit for a campground;

Ms. Mis also noted that the majority of the property is in the Water Supply Protection District, where the use is not permitted. Ms. Mis also noted that the restrictions of the Water Supply Projection District, when more strict than the underlying district, prevail. Ms. Mis reviewed the various uses that are not permitted in the Water Supply Protection District.

Catherine Ady Bell, 371 Main Road: Ms. Bell spoke of her experience from two years ago; Ms. Bell suggested more communication would be helpful; the signage was distracting; the noise was considerable for that day.

Mr. Ken Fountain, 294 Main Road: Mr. Fountain regarding contamination of gas and oil from the bikes: the fields would have showed evidence of this; the farmer who cuts the field has no problems with the quality of the hay from the field, or the condition of the field; Mr. Fountain noted no evidence of disruption of wildlife from the event; trailcams appear to show significant wildlife activity in spite of the event; Mr. Fountain noted that the trail is only a few feet wide, and the trail is trimmed only to provide access along the path; no destruction of the wooded area is evident. Mr. Fountain was on site on Friday night, and no racing happened; no racing on Saturday either, except for kids on electric bicycles; Mr. Fountain noted no traffic problems on the day of the race, as arrivals on site was staggered.

Mr. John Bridgman, 81 Main Road: Was at the race, from noon to 3 PM on Sunday; describe the event as relatively quiet, very clean, EMTs on site, saw no problem with it. He did note that rain from the night before meant tracking of mud onto the main road.

Ms. Lisa Marney, 349 Main Road: Everyone has really great points; the board needs to determine if the event is on overlay land; the largest issue was not having notification in advance; If this is approved, it could constitute a change in use on the land; going forward, the board should consider how such an event would effect everyone, not just a small group.

Ms. Jeannette Bailey, 384 Main Road: Concerned about fire danger, cigarettes, etc. Takes a lot to bring fire trucks up the hill; no hydrants in the neighborhood; safety is a concern as well; a lot of campers and participants; and the event was loud; the lack of notification was a concern; animals are disturbed; also concerned about firearms at the event.

Mr. Bill Tracy, 106 South Road: "what's in it for the town?" The most significant damage to the town is the division among neighbors, not noise or traffic; what we need to be able to do is have some dialogue,

not just ‘winners and losers’; the rules are rules, but they don’t allow for dialogue. Mr. Tracy offered to act as ‘mediator’ to allow some sort of compromise.

Ms. Milikowsky read into the record¹ letters from

- Mr. Jason McDonald, 361 Main Road
- Ms. Carol Magrone, 33 Lyman Road
- Ms. Lynn Cooper, 184 Laurel Hill
- Mr Rod E. _____, Huntington
- Sam Baskin, 300 Main Road
- Jonathan Kahane, 343 Main Road

Ms. Milikowsky offered anyone an additional two minutes:

Ms. Mis: Noting the application for a “one-day event”, the description provided by the event was for two three-day events; Ms. Mis also noted that the proposed event (camping, food trucks, sanitary services, etc.) describes and increased use of the land, and potential impacts from fuel storage associated with the events.

Ms. Milikowsky offered Mr. Bauer an opportunity to provide a followup.

Mr. Bauer: Offered an apology to his neighbors and abutters for the disruption from the previous events, including signage, and other disruption; “I’m going to own it.” Going forward, Mr. Bauer offered to work with his neighbors and residents; Mr. Bauer noted that the Manhan river does abut the property; the trail was a road in Westhampton at one point; Mr Bauer noted that there is traffic (ATVs, quads, dirt bikes) along that trail outside of his control; Mr. Bauer noted that the trail is often used by hikers and riders; Mr. Bauer thanked the board for their time.

Ms. Milikowsky asked for a motion.

It was MOVED by Bronstein, SECONDED by Clement

To continue the public hearing to Thursday, February 5, 2026 at 7 PM.

VOTED: 5, 0, 0. (8:52 PM)

ADJOURN

It was MOVED by Bronstein, SECONDED by Coffey

To adjourn.

VOTED: 5, 0, 0. (8:53 PM)

Respectfully submitted,

Douglas C. Finn

¹ All letters are included as addendum to these minutes, and will be included in the public file.